

Smt. Rekha Chahar v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 18 January 2023 · WRIT - C No. 19481 of 2022 · **An order-sheet writ in which the petitioner, who had applied on 09.01.2022 for a 2 KW residential connection, challenged the demand of Rs.48,204 raised as the cost of enhancing an overloaded distribution transformer by 16 KVA before releasing her connection. Across successive orders the Division Bench repeatedly required the Executive Engineer to justify the demand - to disclose the total transformer load, the cost of augmentation, the basis of the Rs.48,204 figure, and whether that cost was to be borne by the petitioner alone or by all consumers - and to disclose the specific provision of the Supply Code, tariff order, rules or Government Orders authorising it; by order dated 22.12.2022 it recorded that it was 'absolutely not satisfied' with the affidavits, which did not show how the licensee's duty under Clauses 4.1 and 4.2 had been fulfilled or why an applicant for a fresh connection was being charged for transformer augmentation. It also warned (15.07.2022) that a demand raised in violation of law would be treated as sheer harassment warranting a recommendation for disciplinary proceedings. By the final order dated 18.01.2023, without expressing any opinion on merits, the Court disposed of the writ by relegating the petitioner to a fresh representation before respondent no. 2, to be decided in accordance with law within four weeks.**

Source file: WRIC(A)_19481_2022.pdf

HEADNOTE

The petitioner, Smt. Rekha Chahar, applied on 09.01.2022 for a 2 KW (2 KVA) permanent residential electricity connection, depositing the process fee; the connection was withheld on the ground that the distribution transformer was already overloaded and its capacity had to be increased by 16 KVA, for which the petitioner was required to deposit Rs.48,204. In a series of orders on the order-sheet, the Division Bench pressed the Executive Engineer to justify the demand - to disclose on affidavit the total load on the transformer, the total cost of augmentation, how the figure of Rs.48,204 was arrived at, and whether that cost was to be borne by the petitioner alone or by all consumers - and to identify the specific provision of the U.P. Electricity Supply Code, the tariff order, the rules or Government Orders under which the charge was demanded. Finding the department's successive affidavits wanting, the Court (22.12.2022) recorded that it was 'absolutely not satisfied' and that the affidavits did not show how the licensee's duty under Clauses 4.1 and 4.2 of the Supply Code had been fulfilled or why an applicant seeking a fresh connection was being charged for enhancing the transformer load; earlier (15.07.2022) it had warned that if the demand were found to violate the law it would be treated as sheer harassment, exposing the responsible officer to a recommendation for disciplinary proceedings. These, however, were interim observations: by the final order dated 18.01.2023 (Surya Prakash Kesarwani and Jayant Banerji, JJ.), without expressing any opinion on merits, the Court disposed of the writ by giving the petitioner liberty to submit a fresh representation before respondent no. 2 within three weeks, to be decided in accordance with law within four weeks.

FACTUAL SUMMARY

The petitioner, Smt. Rekha Chahar, a resident of House No. 26, Gangotri Vihar-Rohta, Gwalior Road, District Agra, applied on 09.01.2022 for a permanent 2 KW residential electricity connection (from the feeder at Bad, District Agra), depositing the process fee. The connection was not released; the petitioner was told that the distribution transformer was already overloaded, that its capacity had to be enhanced by 16 KVA, and that she must deposit Rs.48,204 towards that cost. She filed WRIT-C No. 19481 of 2022 seeking a mandamus to provide the connection and to decide her representation dated 15.05.2022. By order dated 15.07.2022 the Division Bench called for a personal affidavit of respondent no. 2 disclosing the total transformer load, the cost of augmentation, the basis of the Rs.48,204 demand, and whether that cost was to be borne by the petitioner alone or by all consumers, and left it open to respondent no. 2 to re-examine and, if the demand was unjustified, to release the connection; it also warned that a demand in violation of law would be treated as harassment. The department's affidavits were found inadequate (23.09.2022: the relevant provisions of law were not disclosed; 22.12.2022: the affidavits did not show how the duty under Clauses 4.1 and 4.2 was fulfilled, and the Court was 'absolutely not satisfied'). The matter passed through several Benches; finally, on 18.01.2023 (Surya Prakash Kesarwani and Jayant Banerji, JJ.), the Court disposed of the writ by relegating the petitioner to a fresh representation before respondent no. 2, to be decided in accordance with law within four weeks.

REUSABLE CONSTRUCTIONS

1. An applicant for a fresh electricity connection cannot be saddled with the cost of enhancing/augmenting the distribution transformer's capacity unless the licensee discloses the legal basis for the charge; augmentation of the

distribution system is prima facie the licensee's duty under Clauses 4.1 and 4.2 of the U.P. Electricity Supply Code, 2005, and whether the cost falls on the single applicant or is spread over all consumers must be justified. [order of 15.7.2022](#); [order of 22.12.2022](#)

2. An authority demanding a charge for an electricity connection must disclose the specific provision of law - the U.P. Electricity Supply Code, the tariff order, the rules or Government Orders - authorising the demand; repeated failure to disclose the legal basis leaves the demand unsupported. [order of 23.9.2022](#); [order of 22.12.2022](#)
3. A demand raised in violation of law may be treated as sheer harassment, exposing the responsible officer to a recommendation for disciplinary proceedings. [order of 15.7.2022](#)
4. Where the justification for an impugned demand remains unexamined, the writ court may relegate the applicant to a fresh representation before the competent authority to be decided in accordance with law within a fixed time, without expressing any opinion on merits. [order of 18.1.2023](#)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

OBITER

Applicant for a fresh connection prima facie not to be charged for augmenting the transformer capacity without the licensee justifying the demand under Clauses 4.1 and 4.2

QUESTION

Can an applicant for a fresh electricity connection be required to bear the cost (here Rs.48,204) of enhancing the capacity of an overloaded distribution transformer, and is that consistent with the licensee's duty under Clauses 4.1 and 4.2 of the U.P. Electricity Supply Code, 2005?

HOLDING

The Court did not finally decide, but expressed strong prima facie disapproval. It repeatedly required the licensee to justify demanding Rs.48,204 from a single applicant for augmenting the transformer, including whether that cost should be borne by the petitioner alone or by all consumers, and recorded (22.12.2022) that it was 'absolutely not satisfied' with the affidavits, which did not show how the licensee's duty under Clauses 4.1 and 4.2 of the Supply Code had been fulfilled or why money was being demanded from an applicant seeking a fresh connection for enhancement of the transformer load. These were interim observations; the writ was ultimately disposed of by relegating the petitioner to a representation before respondent no. 2, without a decision on merits. [order of 15.7.2022](#); [order of 22.12.2022](#)

EVIDENCE *"whether the amount to be spent in enhancing the capacity is to be borne by the petitioner alone or by all consumers."* [order of 15.7.2022](#)

EVIDENCE *"From the two affidavits which the Electricity Department had filed it is not clear as to how the duty cast upon the licensee had been fulfilled under the Clauses 4.1 and 4.2 of the U.P. Electricity Supply Code, 2005."* [order of 22.12.2022](#)

EVIDENCE *"Let a further affidavits be filed of the Executive Engineer, respondent No.2 to explain why despite the provisions contained in Clauses 4.1 and 4.2 of the Electricity Supply Code, 2005, money is being demanded from the petitioner for the enhancement of the transformer load."* [order of 22.12.2022](#)

FLAG Compilation of order-sheets (15.07.2022-18.01.2023) with no printed page numbers and no numbered paragraphs; pins reference the order dates. The Clauses 4.1/4.2 observations are prima facie/interim - the final order of 18.01.2023 relegated the petitioner to a representation without deciding the merits (see not_decided).

HOLDING-UNIT · UP-2005::4.2

OBITER

A charge demanded for a connection must be traceable to a disclosed provision of the Code, tariff order, rules or Government Orders

QUESTION

Must the licensee, when demanding a charge as a condition of a new connection, disclose the specific provision of law authorising the demand, and what follows from a failure to do so?

HOLDING

Yes. The Court required the respondents to disclose the relevant provisions of the U.P. Electricity Code, the tariff order, the rules or Government Orders under which the Rs.48,204 charge was demanded, noting that the affidavit filed did not disclose the relevant provisions of law under which the charges had been demanded. On the department's repeated failure to disclose the legal basis, the Court was left 'absolutely not satisfied' with the affidavits. This was an interim view; the merits were not decided. [order of 23.9.2022](#); [order of 22.12.2022](#)

EVIDENCE “In the affidavit, the relevant provisions of law under which those charges have been demanded have not been disclosed.” **order of 23.9.2022**

EVIDENCE “disclosing the relevant provisions of U.P. Electricity Code or the tariff order or the relevant rules or Government Orders under which the charges are being demanded from the petitioner.” **order of 23.9.2022**

EVIDENCE “we are absolutely not satisfied with the affidavits which have been filed.” **order of 22.12.2022**

PRINCIPLE TAGS

fresh-connection-applicant-not-liable-for-transformer-augmentation-cost-clauses-4.1-4.2 A 2 KW applicant was asked to pay Rs.48,204 to augment an overloaded transformer; the Court was 'absolutely not satisfied' that the licensee had shown, consistently with its duty under Clauses 4.1 and 4.2, why the applicant alone should bear the augmentation cost. **order of 15.7.2022; order of 22.12.2022**

authority-must-disclose-legal-basis-of-electricity-charge The Court repeatedly required the department to disclose the specific provisions of the Code, tariff order, rules or Government Orders authorising the Rs.48,204 demand; the successive affidavits' failure to do so left the demand unsupported. **order of 23.9.2022; order of 22.12.2022**

unjustified-electricity-demand-may-be-treated-as-harassment-warranting-disciplinary-action The Court warned that if the impugned demand were found to violate any provision of law it would be treated as sheer harassment, compelling a recommendation for disciplinary proceedings against the person responsible. **order of 15.7.2022**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.48,204 FOR ENHANCING THE TRANSFORMER CAPACITY IS LEGALLY SUSTAINABLE AND WHETHER THE PETITIONER IS ENTITLED TO THE 2 KW CONNECTION

Not decided on merits despite strong prima facie observations; by the final order dated 18.01.2023 the Court, without expressing any opinion on merits, relegated the petitioner to a fresh representation before respondent no. 2, to be decided in accordance with law within four weeks. **order of 18.1.2023**

RELATED CASES — SEE ALSO

SCJ-2261 — Kitab Shree - Clauses 4.1, 4.3 and 4.4 oblige the licensee to consider a new-connection application and, if there is no legal impediment, to grant it speedily, the duty the licensee was pressed to honour here.

SCJ-1172 — Sneha Devi - Clause 4.1 obliges the licensee to supply within one month of a completed application, the timeframe/duty against which the withholding of the petitioner's connection was tested.

SCJ-1042 — Smt. Meenu Singh - a new connection refused under Clause 4.1 for an extraneous ground (arrears of other occupants) drew a prima facie interim observation that the refusal was impermissible, mirroring the interim posture and extraneous-demand concern here.

SCJ-229 — Smt. Soni Dwivedi - marks the boundary of Clause 4.1: a new connection may lawfully be refused only for a recognised legal impediment (there, the premises' arrears), in contrast to the unexplained augmentation charge questioned here.